

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Olga Bentin	Team: Squad #04	CCRB Case #: 201900499	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 08/03/2018 12:00 PM	Location of Incident: 13th Precinct stationhouse	18 Mo. SOL 2/3/2020	Precinct: 13		
Date/Time CV Reported Wed, 01/16/2019 9:41 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 01/16/2019 9:41 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Richard Dixon	3163	930062	013 DET
2. An officer			Unknown

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Delwyn Davis	05739	932525	013 DET
2. LT Mario Nicholas	00000	934025	013 DET
3. POM Sean Mckinnon	09380	943553	013 DET
4. SGT Colby Wright	04395	933492	013 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Abuse: An officer threatened to arrest § 87(2)(b)	A . Alleged Victim Unavailable
B . DT3 Richard Dixon	Off. Language: Detective Richard Dixon made remarks to § 87(2)(b) based upon race.	B . Unsubstantiated
C . DT3 Richard Dixon	Abuse: Detective Richard Dixon made sexually suggestive remarks to § 87(2)(b)	C . Unsubstantiated
D . DT3 Richard Dixon	Discourtesy: Detective Richard Dixon spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . DT3 Richard Dixon	Abuse: Detective Richard Dixon made sexually suggestive gestures toward § 87(2)(b)	E . Unsubstantiated
F . DT3 Richard Dixon	Discourtesy: Detective Richard Dixon gestured discourteously toward § 87(2)(b)	F . Unsubstantiated

Case Summary

On February 16, 2019, § 87(2)(b) filed this complaint with the CCRB online.

On July 25, 2018, § 87(2)(b)'s ex-girlfriend, § 87(2)(b), filed a criminal complaint against § 87(2)(b). On August 3, 2018, at approximately 12 p.m., § 87(2)(b) and his friend, § 87(2)(b) went to the 13th Precinct stationhouse to meet with Det. Richard Dixon, of the 13th Precinct Detective Squad, and speak about § 87(2)(b) criminal complaint. § 87(2)(b) was arrested for § 87(2)(b) (BR 02 and BR 12). While § 87(2)(b) was being arrested, § 87(2)(b) attempted to intervene, but an officer, whom the investigation was unable to identify, said to him, "We will arrest you too, if you keep giving us problems" (**Allegation A: Abuse of Authority**, § 87(2)(g)).

§ 87(2)(b) was placed in a holding cell in the Detective Squad room. Det. Dixon arrived and debriefed § 87(2)(b) about § 87(2)(b) criminal complaint. During their conversation, Det. Dixon called § 87(2)(b) a "white boy" (**Allegation B: Offensive Language**, § 87(2)(g)) and said, "I am going to fuck your girl" (**Allegation C: Abuse of Authority**, § 87(2)(g)). § 87(2)(b) cursed at Det. Dixon. Det. Dixon then said to § 87(2)(b) "I am gonna walk right now over to your job and get you fired, and then I will fuck your girl" (**Subsumed in Allegation C**). At some point, Det. Dixon approached the holding cell closely and said to § 87(2)(b) "Kill yourself" (**Allegation D: Discourtesy**, § 87(2)(g)) and then left the room. Approximately two or three hours later, Det. Dixon returned and § 87(2)(b) continued to insult him by calling Det. Dixon a "fat fuck" and a "piece of shit." In return, Det. Dixon called § 87(2)(b) a "white boy" (**Subsumed in Allegation B**) and again said, "I will fuck your girl" (**Subsumed in Allegation C**). Det. Dixon then blew a kiss at § 87(2)(b) (**Allegation E: Abuse of Authority**, § 87(2)(g)) and showed him a middle finger (**Allegation F: Discourtesy**, § 87(2)(g)).

§ 87(2)(b) attempted to commit suicide while being held in the holding cell. He was subsequently removed to § 87(2)(b) to undergo a psychiatric evaluation.

There is no video footage of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: An officer threatened to arrest § 87(2)(b)

§ 87(2)(b) did not witness the threat of arrest, but was informed about it by § 87(2)(b).

The investigation has established the following facts. On July 25, 2018, § 87(2)(b)'s ex-girlfriend, § 87(2)(b), filed a criminal complaint against § 87(2)(b) alleging that he assaulted her (BR 02). On August 2, 2018, at an unspecified time, Det. Richard Dixon, of the 13th Precinct Detective Squad, called § 87(2)(b) to speak about the complaint and to schedule an interview.

§ 87(2)(b) (BR 01) alleged that he scheduled an interview with Det. Dixon on August 3, 2018, at the 13th Precinct stationhouse in Manhattan. On August 3, 2019, at approximately 12 p.m., § 87(2)(b) and § 87(2)(b) who he asked to accompany him, appeared at the 13th Precinct stationhouse. § 87(2)(b) approached the front desk and asked to speak to Det. Dixon. Sgt. Colby Wright, of the 13th Precinct, told § 87(2)(b) that Det. Dixon was not in the office. § 87(2)(b) got upset and called Det. Dixon "an asshole." Sgt. Wright then called Det. Dewlyn Davis, of the 13th Precinct Detective Squad, to speak to § 87(2)(b). Det. Davis appeared and arrested § 87(2)(b). § 87(2)(b) got upset and said to Det. Davis, "You all fucking suck at your job, because you are arresting someone for no fucking reason," and, "Am I supposed to be scared of you? You are one big fucking NYPD gang." § 87(2)(b) attempted to intervene, but two uniformed officers,

whom the investigation was unable to identify, asked him to leave the stationhouse. He complied. After § 87(2)(b) was released, § 87(2)(b) told him that after he exited the stationhouse, he did not leave and remained standing outside. The officers who initially asked § 87(2)(b) to leave, approached him and said something to the effect of, “We will arrest you too, if you keep giving us problems.”

The investigation was unable to establish contact with § 87(2)(b) (BR 03).

There is no video footage of this incident.

§ 87(2)(g)

Allegation (B) Offensive Language: Detective Richard Dixon made remarks to § 87(2)(b) based upon race.

Allegation (C) Abuse of Authority: Detective Richard Dixon made sexually suggestive remarks to § 87(2)(b)

Allegation (D) Discourtesy: Detective Richard Dixon spoke discourteously to § 87(2)(b)

Allegation (E) Abuse of Authority: Detective Richard Dixon made sexually suggestive gestures toward § 87(2)(b)

Allegation (F) Discourtesy: Detective Richard Dixon gestured discourteously toward § 87(2)(b)

§ 87(2)(g)

The investigation has established the following facts. On August 3, 2018, when § 87(2)(b) appeared at the 13th Precinct stationhouse, he was taken into custody by Det. Davis. Det. Davis brought § 87(2)(b) to the Detective Squad Room, located on the second floor, and placed him in a holding cell. There was another male prisoner, identified by the investigation as § 87(2)(b), in the holding cell with § 87(2)(b).

§ 87(2)(b) (BR 01) stated that approximately 40 minutes later, Det. Dixon arrived. He immediately walked over to the holding cell and said to § 87(2)(b) “You are here because you are disrespectful.” § 87(2)(b) told Det. Dixon that he was arrested because of his ex-girlfriend and then called Det. Dixon a “fuck.” In response, Det. Dixon called § 87(2)(b) a “white boy,” and said, “I will fuck your girl,” referring to § 87(2)(b). § 87(2)(b) got upset and replied to Det. Dixon, “You are a dumb fucking nigger. I bet that’s what you are planning to do. You are a fat piece of shit who cannot get a girl so you have to steal fucking other peoples.” Det. Dixon laughed at § 87(2)(b) and said, “I am gonna walk right now over to your job and get you fired, and then I will fuck your girl.” § 87(2)(b) yelled to Det. Davis and Det. Sean Mckinnon, also of the 13th Precinct Detective Squad, “Is anyone fucking hearing this? This is your colleague. None of you, fucking people... You all act like you don’t hear him.” Minutes later, Det. Dixon approached the cell and said to § 87(2)(b) quietly, “Kill yourself,” and then left the room.

§ 87(2)(b) got deeply upset. He then took the belt off his pants, tied the belt around his neck and the holding cell to commit suicide. As § 87(2)(b) began to lose consciousness, he heard PO Mckinnon yell, “Hey, hey, hey.” PO Mckinnon then ran into the holding cell and removed the belt from around § 87(2)(b)’s neck.

Approximately two or three hours later, Det. Dixon returned. § 87(2)(b) immediately began to insult Det. Dixon by saying, “You are back again? You are a fat fuck. You know what I

can do to you.” At some point, EMS arrived and examined § 87(2)(b). While being examined by a female EMT, identified by the investigation as § 87(2)(b), Det. Dixon called § 87(2)(b) a “white boy.” § 87(2)(b) then made several jokes about Det. Dixon’s appearance and how he looked like a “piece of shit.” At some point, Det. Dixon again said to § 87(2)(b) “I will fuck your girl.” He then blew a kiss to § 87(2)(b) and showed him a middle finger. Shortly afterwards, § 87(2)(b) was removed to § 87(2)(b).

§ 87(2)(b)’s medical records (BR 04) from § 87(2)(b) document that § 87(2)(b) was brought to the Emergency Room while in police custody after attempting to commit suicide. He was tearful while being interviewed by a psychiatrist and stated, “They are gonna kill me. I want to die. I am tired of being here. I do not have place on this planet.” When asked why he was arrested, § 87(2)(b) stated that his ex-girlfriend claimed he hurt her, but he did not. The medical records do not mention § 87(2)(b) complaining about his interaction with Det. Dixon.

EMT § 87(2)(b) (BR 05) did not have an independent recollection of this incident. EMT § 87(2)(b) did not hear Det. Dixon or any officer make the alleged remarks or gestures toward § 87(2)(b).

The Pre-hospital Care Report (BR 06) prepared by EMT § 87(2)(b) documents that she and EMT Miguel Perez were requested to the stationhouse for an emotionally disturbed person. EMT § 87(2)(b) observed § 87(2)(b) sitting on a bench. § 87(2)(b) told EMT § 87(2)(b) “I am angry, because now I lost my job... My home.” He denied loss of consciousness, head, back, or neck pain.

The investigation was unable to establish contact with § 87(2)(b) (BR 07).

There is no video footage of this incident.

Det. Dixon (BR 08) corroborated § 87(2)(b)’s account that he called § 87(2)(b) to speak about § 87(2)(b) criminal complaint. § 87(2)(b) became irate over the phone, said, “You motherfucker, no one calls me,” and then disconnected the call. On August 3, 2018, at an unknown time, Det. Dixon was on his way to work when he received a call from an officer, whose name he did not recall, stating that § 87(2)(b) was at the stationhouse to see him. Det. Dixon arrived at the stationhouse and spoke to Sgt. Wright, who informed him that § 87(2)(b) was very disrespectful toward her and made racist remarks. Sgt. Wright told Det. Dixon that Det. Davis took temporary custody of § 87(2)(b). Det. Dixon then went to the Detective Squad room and saw § 87(2)(b) in the holding cell. There were no other prisoners in the holding cell. Det. Davis and PO Mckinnon were in the room. Det. Dixon did not recall if there were any other detectives in the Detective Squad room at that time.

Det. Dixon approached the holding cell, apologized to § 87(2)(b) for being late, and said that he was arrested because his ex-girlfriend made a complaint against him. § 87(2)(b) called Det. Dixon a “motherfucker,” and a “black nigger,” and asked him if he was “African.” Det. Dixon told § 87(2)(b) that he was from Jamaica. § 87(2)(b) then made several racially disrespectful remarks and sounds towards Det. Dixon. Det. Dixon ignored § 87(2)(b) while Det. Davis asked him to stop. Det. Dixon remained in the Detective Squad room for approximately five minutes and then went to the locker room located on the fourth floor of the 13th Precinct stationhouse. Det. Davis and PO Mckinnon remained with § 87(2)(b). Approximately 10 minutes later, Det. Dixon returned and was informed by Lt. Mario Nicholas, of the 13th Precinct Detective Squad, that § 87(2)(b) attempted to hang himself in the holding cell. Det. Dixon did not see EMS in the Detective Squad room, and he was not aware whether EMS was called. Det. Dixon denied interacting with § 87(2)(b) upon his return from the locker room, and said that he last saw and spoke to § 87(2)(b) shortly before he went to the locker room.

Det. Dixon denied calling § 87(2)(b) a “white boy” or making any remarks about § 87(2)(b)s race. Det. Dixon denied saying to § 87(2)(b) “I will fuck your girl,” or, “I am gonna walk right now over to your job and get you fired, and then I will fuck your girl,” and denied making any sexually inappropriate remarks toward § 87(2)(b). Det. Dixon denied saying to § 87(2)(b) “Kill yourself.” He denied showing a middle finger to § 87(2)(b) or making any discourteous gestures toward him. Det. Dixon denied blowing a kiss to § 87(2)(b) or making any sexually suggestive gestures toward § 87(2)(b). Det. Dixon denied witnessing any officer committing these allegations.

Det. Davis (BR 09) stated that he was aware that Det. Dixon was looking for § 87(2)(b) regarding the criminal complaint filed by § 87(2)(b). Det. Davis acknowledged taking temporary custody of § 87(2)(b). When § 87(2)(b) was brought to the Detective Squad room, he was yelled and cursed at officers, calling them “pigs,” and saying things like, “Cops will kill me,” and that he was getting arrested for no reason. § 87(2)(b) calmed down after being placed in the holding cell; therefore, Det. Davis removed the handcuffs from § 87(2)(b). Approximately 15 or 30 minutes later, Det. Dixon arrived and took custody of § 87(2)(b). § 87(2)(b) yelled and cursed at Det. Dixon, and called him a “nigger,” a “milk duds,” and a “coconut.” He also said to Det. Dixon, “I bet you want to come here and punch me in the face and kill me, like all you cops do.” Det. Dixon was upset with § 87(2)(b)s remarks, but remained professional. He informed § 87(2)(b) that § 87(2)(b) filed a complaint against him for assaulting her. § 87(2)(b) called his girlfriend a “bitch,” and said that she was lying. Det. Dixon and § 87(2)(b) did not have any other conversation about § 87(2)(b). Approximately 30 minutes later, Det. Davis went downstairs to work on his cases. Det. Davis did not remember if Det. Dixon remained upstairs or left the office as well. Almost an hour later, Det. Davis returned and learned that § 87(2)(b) attempted to hang himself in the holding cell. Det. Davis did not see or speak to § 87(2)(b) upon his return to the stationhouse. Det. Davis did not hear Det. Dixon or any officer make the alleged remarks or gestures toward § 87(2)(b).

PO Mckinnon (BR 10) provided a generally consistent account with that of Det. Dixon and Det. Davis, with the following exceptions and additional information. When Det. Dixon arrived, § 87(2)(b) became verbally abuse towards him by calling Det. Dixon a “nigger” and “Green Mile.” Det. Dixon was upset with the comments and argued with § 87(2)(b) but PO Mckinnon did not remember what their argument was about. PO Mckinnon did not remember if Det. Dixon mentioned § 87(2)(b) during their argument. PO Mckinnon acknowledged that he intervened and removed the belt from around § 87(2)(b)s neck when he attempted to commit suicide in the holding cell. He was also the one who called EMS and escorted § 87(2)(b) to the hospital. PO Mckinnon saw Det. Dixon in the room, but did not know when he appeared. PO Mckinnon denied that Det. Dixon interacted with § 87(2)(b) when EMS arrived. PO Mckinnon did not hear Det. Dixon or any officer make the alleged remarks or gestures toward § 87(2)(b).

The Medical Treatment of Prisoner Form (BR 11) prepared by Sgt. Robert Cattani of the 13th Precinct notes that § 87(2)(b) was removed to the hospital to receive psychological aid.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 14).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 15).
- Det. Richard Dixon has been a member of service for 16 years and has been a subject in eight CCRB complaints and 17 allegations, of which one was substantiated:
 - Case no. 200302347 involved an allegation of physical force. The Board recommended charges, and the NYPD found Det. Dixon not guilty.
 - § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of April 23, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim filed in regards to this complaint (BR 16).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 4

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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